

HOUSE BILL NO. 731

INTRODUCED BY S. KLAKKEN

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING LAWS RELATED TO AIRPORTS; REQUIRING AIRPORTS THAT RECEIVE PUBLIC FUNDING TO PROVIDE CERTAIN SERVICES TO LIGHT AIRCRAFT AT NO COST; AND DEFINING "LIGHT AIRCRAFT".

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Publicly funded airports -- light aircraft. (1) An airport that receives public funding in whole or in part to carry out the airport's operations must:

(a) allow a light aircraft to:

(i) land;

(ii) taxi; and

(iii) park with tie downs for up to 3 days; and

(b) provide a light aircraft with access for passengers and aircrew through security fencing in conformance with 49 CFR, part 1542, if applicable.

(2) The services in subsection (1) must be provided at no cost to the owner, operator, or passengers of a light aircraft.

(3) No additional fees associated with landing, taxiing, parking, or security may be charged to the owner, operator, or passengers of a light aircraft unless the fees are clearly noticed and specifically agreed to in advance of each flight.

(4) For the purposes of this section, "light aircraft" means an aircraft with a gross weight of less than 9,000 pounds that is operating under 14 CFR, part 91.

NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an integral part of Title 67, chapter 1, part 1, and the provisions of Title 67, chapter 1, part 1, apply to [section 1].

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